

CV-25-003001 BENNETT, DONALD vs RH ALUMINUM BOATS – a) Defendant Blueearth Marine, LLC’s Motion to Compel Responses to Request for Production of Documents, Set One, from Plaintiff Donald Bennett; Request for Order Awarding Monetary Sanctions Against Plaintiff and Plaintiff’s Attorney – GRANTED, unopposed; b) Defendant Blueearth Marine, LLC’s Motion to Compel Responses to Form Interrogatories, Set One, from Plaintiff Donald Bennett; Request for Order Awarding Monetary Sanctions Against Plaintiff and Plaintiff’s Attorney – GRANTED, unopposed; c) Defendant Blueearth Marine, LLC’s Motion to Compel Responses to Special Interrogatories, Set One, from Plaintiff Donald Bennett; Request for Order Awarding Monetary Sanctions Against Plaintiff and Plaintiff’s Attorney - GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) GRANTED, unopposed. The Court finds that Plaintiff Donald Bennett failed to timely respond to Defendant Blueearth Marine's properly propounded Requests for Production, Set One served on Plaintiff on October 29, 2025, entitling Defendant to bring the present motion and to the award of monetary sanctions. (Code of Civ. Proc., §§2017.010, 2031.300(a) and (b)). Any objections to said Requests for Production including those based on privilege and work product are accordingly waived. (Code of Civ. Proc., §§2031.300(b)). Plaintiff shall accordingly serve Defendant with verified, objection-free code-compliant responses to said Requests for Production, Set One, and produce all responsive documents in Plaintiff's possession within ten days of the service of this order. Monetary sanctions of \$975 are hereby imposed against Plaintiff and his Counsel for Defendant's reasonable attorney fees and costs incurred in bringing this motion. Civ Proc. Code §§2031.300(c), 2023.010 (h); 2023.030(a); Cal Rules of Court Rule 3.1348 (a); Masimo Corp. v. The Vanderpool L. Firm, Inc., (2024)101 Cal. App. 5th 902. b) GRANTED, unopposed. The Court finds that Plaintiff Donald Bennett failed to timely respond to Defendant Blueearth Marine's properly propounded Form Interrogatories, Set One served on Plaintiff on October 29, 2025, entitling Defendant to bring the present motion and to the award of monetary sanctions. Code of Civ. Proc., §§2017.010, 2030.290(b). Any objections to said Form Interrogatories including those based on privilege and work product are accordingly waived. Code of Civ. Proc., §2030.290((b)). Plaintiff shall accordingly serve Defendant with verified, objection-free code-compliant responses to said Form Interrogatories, Set One, within ten days of the service of this order. Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); Cal Rules of Court, Rule 3.1348 (a); Masimo Corp. v. The Vanderpool L. Firm, Inc., (2024)101 Cal. App. 5th 902. Monetary sanctions of \$975 are hereby imposed against Plaintiff and his Counsel for Defendant's reasonable attorney fees and costs incurred in bringing this motion. c) GRANTED, unopposed. The Court finds that Plaintiff Donald Bennett failed to timely respond to Defendant Blueearth Marine's properly propounded Special Interrogatories, Set One served on Plaintiff on October 29, 2025, entitling Defendant to bring the present motion and to the award of monetary sanctions. Code of Civ. Proc., §§2017.010, 2030.290(b). Any objections to said Form Interrogatories including those based on privilege and work product are accordingly waived. Code of Civ. Proc., §2030.290((b)). Plaintiff shall accordingly serve Defendant with verified, objection-free code-compliant responses to said Form Interrogatories, Set One, within ten days of this service of this order. Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); Cal Rules of Court Rule 3.1348 (a); Masimo Corp. v. The Vanderpool L. Firm, Inc., (2024)101 Cal. App. 5th 902. Monetary sanctions of \$350 are hereby imposed against Plaintiff and his counsel for Defendant's reasonable attorney fees and costs incurred in bringing this motion. The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings in Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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a) GRANTED, unopposed.

The Court finds that Plaintiff Donald Bennett failed to timely respond to Defendant Blueearth Marine's properly propounded Requests for Production, Set One served on Plaintiff on October 29, 2025, entitling Defendant to bring the present motion and to the award of monetary sanctions. (Code of Civ. Proc., §§2017.010, 2031.300(a) and (b)).

Any objections to said Requests for Production including those based on privilege and work product are accordingly waived. (Code of Civ. Proc., §§2031.300((b))).

Plaintiff shall accordingly serve Defendant with verified, objection-free code-compliant responses to said Requests for Production, Set One, and produce all responsive documents in Plaintiff's possession within ten days of the service of this order.

Monetary sanctions of \$975 are hereby imposed against Plaintiff and his Counsel for Defendant's reasonable attorney fees and costs incurred in bringing this motion. Civ Proc. Code §§2031.300(c), 2023.010 (h); 2023.030(a); Cal Rules of Court Rule 3.1348 (a); Masimo Corp. v. The Vanderpool L. Firm, Inc., (2024)101 Cal. App. 5th 902.

b) GRANTED, unopposed.

The Court finds that Plaintiff Donald Bennett failed to timely respond to Defendant Blueearth Marine's properly propounded Form Interrogatories, Set One served on Plaintiff on October 29, 2025, entitling Defendant to bring the present motion and to the award of monetary sanctions. Code of Civ. Proc., §§2017.010, 2030.290(b).

Any objections to said Form Interrogatories including those based on privilege and work product are accordingly waived. Code of Civ. Proc., §2030.290((b)).

Plaintiff shall accordingly serve Defendant with verified, objection-free code-compliant responses to said Form Interrogatories, Set One, within ten days of the service of this order. Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); Cal Rules of Court, Rule 3.1348 (a); Masimo Corp. v. The Vanderpool L. Firm, Inc., (2024)101 Cal. App. 5th 902.

Monetary sanctions of \$975 are hereby imposed against Plaintiff and his Counsel for Defendant's reasonable attorney fees and costs incurred in bringing this motion.

c) GRANTED, unopposed.

The Court finds that Plaintiff Donald Bennett failed to timely respond to Defendant Blueearth Marine's properly propounded Special Interrogatories, Set One served on Plaintiff on October 29, 2025, entitling Defendant to bring the present motion and to the award of monetary sanctions. Code of Civ. Proc., §§2017.010, 2030.290(b).

Any objections to said Form Interrogatories including those based on privilege and work product are accordingly waived. Code of Civ. Proc., §2030.290((b)).

Plaintiff shall accordingly serve Defendant with verified, objection-free code-compliant responses to said Form Interrogatories, Set One, within ten days of this service of this order. Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); Cal Rules of Court Rule 3.1348 (a); Masimo Corp. v. The Vanderpool L. Firm, Inc., (2024)101 Cal. App. 5th 902.

Monetary sanctions of \$350 are hereby imposed against Plaintiff and his counsel for Defendant's reasonable attorney fees and costs incurred in bringing this motion.

The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

There are no tentative rulings in Department 19

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